

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, IN THE ALTERNATIVE SET ASIDE DEFAULT JUDGMENT PER CCP 473.5

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua (Mother) and Respondent Emmanuel Gonzalez (Father). They share one minor child named Yaretzi Mendoza (08/16/20).
- 2) On May 15, 2026, Father filed a Request for Order in which he seeks the following orders:
 - a. Set Aside Default Judgment entered on 04/07/25; or, in the alternative
 - b. Modification of Child Custody;
 - c. Modification of Visitation; and
 - d. Modification of Child Support (DCSS is involved in this action).
- 3) On May 15, 2026, Father filed an Income and Expense Declaration.
- 4) On June 18, 2026, Mother filed a Responsive Declaration in which she is asking this Court to deny all of the relief requested by Father.

- 1 5) On June 12, 2026, a Declaration was filed by Process Server, Wilfredo Mendez, who has declared
2 under penalty of perjury that he served Father in Court after a hearing conducted on January 12,
3 2023.

4 **B. Findings and Order**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.
- 9 2) Father's motion to set aside the default Judgment entered on April 7, 2025 is DENIED.
- 10 3) Father's request to modify the existing child custody and visitation orders is DENIED. Father has
11 not provided this Court with any evidence that he has taken any steps towards resolving the issues
12 which led to the issuance of the juvenile court's child custody and visitation orders. As such,
13 there is no change in circumstance warranting a modification at this time.
- 14 4) Father's request to modify child support is continued to Department 414 to be heard on the
15 Court's Department of Child Support Services (DCSS) calendar as DCSS is involved in the case.
16 Father's request to modify child support is therefore **continued to September 15th at 8:30 a.m.,**
17 **in Department 414.**
- 18 5) All existing orders, not in conflict with the orders made herein, remain in full force and effect.
- 19 6) The Court will prepare the Findings and Order After Hearing.
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